

In The Matter of Satoshi J Sakamoto

26CV001348

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Rodney Tyrone Smith

25PR000029

STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. There remains no petition for final distribution or status report on file. Executor is therefore required to appear prepared to discuss the condition of the estate, the reasons why the estate cannot be distributed and closed, and an estimate of time needed to close administration of the estate.

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Conservatorship of Sofia Vanessa Munoz Castro

26PR000151

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON – LIMITED CONSERVATORSHIP

TENTATIVE RULING: The matter is CONTINUED to October 07, 2026, at 8:30 a.m. in Dept. B to permit Petitioner to address the following deficiencies:

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Red Target, LLC dab SCJ Commercial Financials Services v. Kiersten Firquain

23CV000301

PLAINTIFF’S MOTION TO SET ASIDE JULY 21, 2026, HEARING PURSUANT TO CODE OF CIVIL PROCEDURE 473(b)

TENTATIVE RULING: The Motion, construed as one seeking to set aside prior orders, is GRANTED. The Court orders the Clerk to STRIKE the Court’s Minute Order of July 21, 2026, granting Defendant’ Kiersten Firquain’s Motion to Strike Plaintiff’s First Amended Complaint (Motion to Strike), and the Order After Hearing filed August 7, 2026. Plaintiff is granted leave to serve and file, no later than September 16, 2026, any opposition to the Motion to Strike. Ms. Firquain is granted leave to serve and file, no later than September 23, 2026, any

Reply in support of the Motion to Strike. The Motion to Strike is set for rehearing on September 30, 2026, at 8:30 a.m. in Dept. B.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Red Target, LLC (Red Target) moves, pursuant to Code of Civil Procedure section 473, subdivision (b), for an order setting aside “the court hearing” granting Defendant’s Motion to Strike on July 21, 2026. While somewhat ambiguous, the Court understands that, by the Motion, Red Target seeks relief from the Court’s Minute Order of July 21, 2026, granting Defendant’ Kiersten Firquain’s Motion to Strike Plaintiff’s First Amended Complaint. That order was then confirmed by Order After Hearing entered August 7, 2026. Based on the foregoing, the Court reasonably construes the instant Motion as seeking an order vacating both of the foregoing orders.

“The court may, upon any terms as may be just, relieve a party . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect The application . . . shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. § 473, subd. (b).) Public policy favors trying cases on the merits. Consistent with this policy, “any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Where an application for relief from dismissal under section 473 “is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect,” the Court is *compelled* to “vacate any . . . resulting . . . dismissal entered against his or her client, unless the court finds that the . . . dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Section 473, subd. (b).)

The Declaration of James Long, filed with the Reply, is sufficient support for the Motion. Based on the foregoing, the Motion is GRANTED.

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MOTION TO CONTINUE TRIAL AND TRIAL-RELATED DEADLINES

TENTATIVE RULING: The Court, having considered Defendant David Langon Construction, Inc.’s showing of good cause, the factors under Rules of Court, rule 3.1332(d), and the parties’ briefs, GRANTS the motion. The Trial Management Conference (TMC) is hereby continued to December 3, 2026 at 8:30 a.m. in Dept. B, and Trial is continued December 7, 2026, at 8:30 a.m. in Dept. B. The Court will sign the proposed order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Maudie Pollatrini v. Auberge Resorts, LLC et al

24CV001401

[1] DEFENDANT AUBERGE RESORTS, LLC’S MOTION TO COMPEL
ARBITRATION

TENTATIVE RULING: The motion is DENIED.

Defendant Auberge Resorts LLC (Auberge) moves for an order compelling Plaintiff Maudie Pollatrini to arbitrate her claims asserted against Auberge in this action on grounds “that Plaintiff entered into a binding and enforceable Arbitration Agreement . . .” (Notice of Motion at 2:7-9.)

A. LEGAL BACKGROUND

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a motion to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*)). The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35 (*Prima Donna*)).